

TOPIC 10:Environmental legislation in Bangladesh





Bangladesh Environmental Conservation Rules 1997

Definitions: – In these Rules, unless there is anything contrary to the subject or context --

“Act” means Bangladesh Environment Conservation Act, 1995 (Act I of 1995); *[Ref. clause (b)]*

“Department” means the Department of Environment established under sub-section (1) of section 3 of the Act; *[Ref. clause (a)]*

“Form” means a form appended to these Rules; *[Ref. clause (e)]*

“local authority” means the **City Corporation** in relation to a metropolitan area, the **Municipality** in relation to a municipal area and the **Union Parishad** in relation to a rural area; *[Ref. clause (g)]*

“parameter” means the characteristics of a standard; *[Ref. clause (f)]*

“Schedule” means a schedule appended to these Rules; *[Ref. clause (c)]*

“section” means a section of the Act. *[Ref. clause (d)]*



An Overview

Declaration of Ecologically Critical Area. – (1) The Government shall take the following factors into consideration while declaring any area as Ecologically Critical Area under sub-section (1) of section 5:-

- (a) human habitat;
- (b) ancient monument;
- (c) archeological site;
- (d) forest sanctuary;
- (e) national park;
- (f) game reserve;
- (g) wild animals habitat;
- (h) wetland;
- (i) mangrove;
- (j) forest area;
- (k) bio-diversity of the relevant area; and
- (l) other relevant factors.



❑ **Vehicles emitting smoke injurious to health and otherwise harmful.-** fitness certificate under the Motor Vehicles Ordinance, 1983

❑ **Application relating to pollution or degradation of environment**

❑ **Procedure for issuing Environmental Clearance Certificate
industrial units and projects**

✓ in consideration of their site and impact on the environment, be classified into the following four categories:-

(a) *Green;*

(b) *Orange – A;*

(c) *Orange – B; and*

(d) *Red.*

Topic 11: Emerging Environmental Issues

Kyoto Protocol

- The UNFCCC (United Nations Framework Convention on Climate Change), an international environmental treaty, which states the goal of the Kyoto Protocol as the “stabilization of greenhouse gas concentrations in the atmosphere at a level that would prevent dangerous anthropogenic interference with the climate system.”
- Why did they make the Kyoto Protocol? Under the Kyoto Protocol, industrialized nations agreed to cut their greenhouse gas emissions to a certain percentage below 1990 levels. The year 1990 was chosen as a baseline because that was the year UN first launched negotiations on climate change.

- The Protocol was adopted by Parties to the UNFCCC in 1997, and entered into force in 2005.
- *the Protocol "recognizes" that developed countries are principally responsible for the current high levels of GHG emissions in the atmosphere as a result of more than 150 years of industrial activity, and places a heavier burden on developed nations under the principle of 'common but differentiated responsibilities'.*
- **Actions taken —**
- reduce emissions include support for renewable energy, improving energy efficiency, and reducing deforestation

Carbon Footprint

- the term “**carbon footprint**” is often used as shorthand for the amount of carbon (usually in tones) being emitted from organization.
- the **Ecological Footprint** shows how carbon emissions compare and interacts with other elements of human demand, such as our pressure on food sources, the quantity of living resources required to make the goods we consume, and the amount of land we take out of production when we pave it over to build cities and roads.
- Climate change, deforestation, overgrazing, fisheries collapse, food insecurity and rapid extinction of species are all part of a single, over-arching problem: **Humanity is simply demanding more from the Earth than it can provide.**

The carbon footprint



WHAT IS AN ECOLOGICAL FOOTPRINT?

- An Ecological Footprint is a measure of the amount of bio-productive land and sea required to support a person's lifestyle. It includes the land needed to grow their food, dispose of their waste and absorb their carbon emissions. The footprint counts all the impacts of personal spending as well as the business and government expenditure on their behalf.

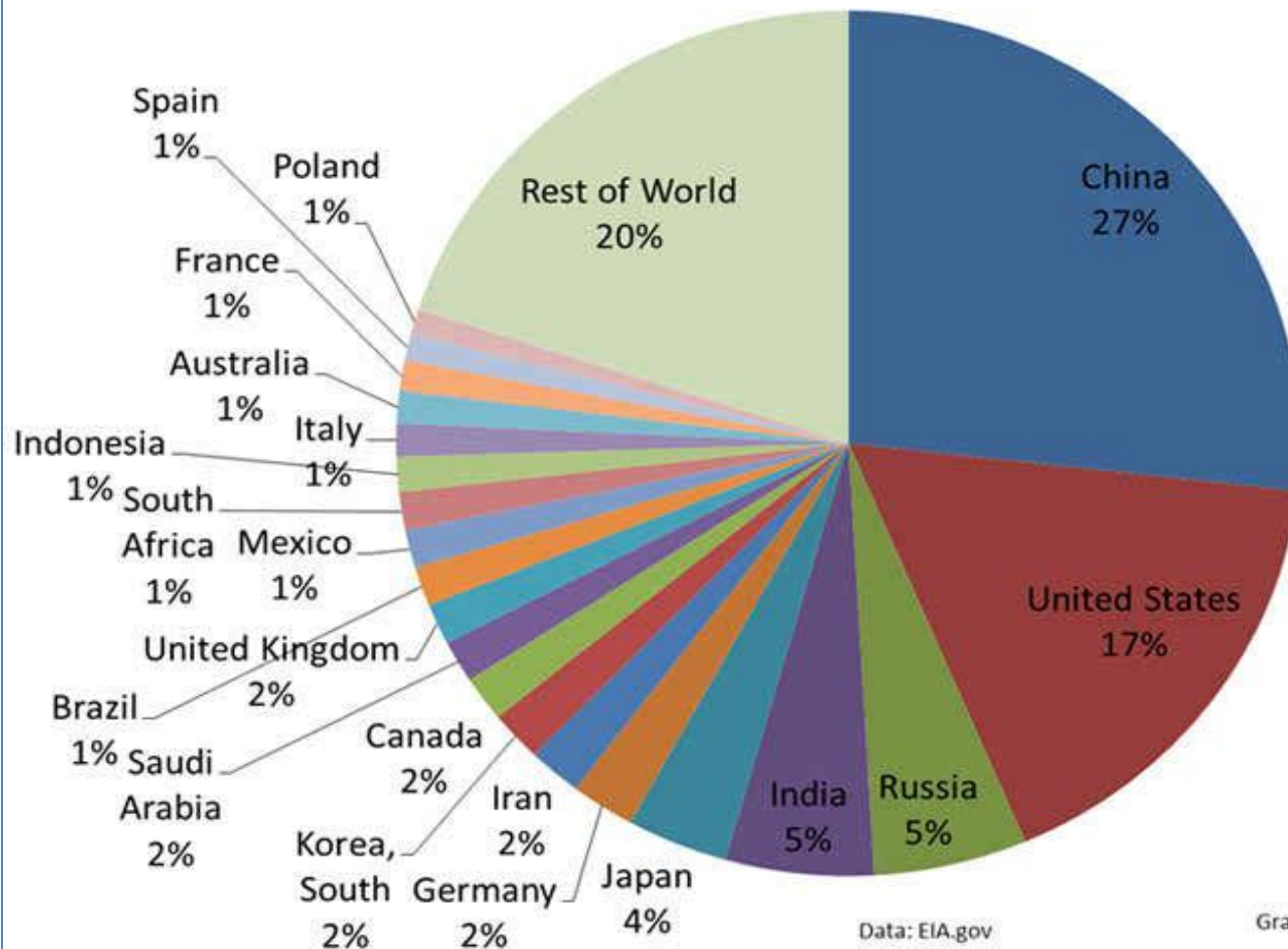
Carbon Trading

Carbon Trading is a scheme where firms (or countries) buy and sell carbon, permits as part of a programme to reduce carbon emissions.

Usually firms are given a certain quota to pollute a certain amount.

If they wish to pollute more than their allowance then they have to buy more permits. If they pollute less than their quota they can sell their spare permits on the market. Thus there is an incentive to reduce pollution and find the most efficient way of dealing with pollution.

Each Country's Share of 2011 Total Carbon Dioxide Emissions from the Consumption of Energy



Graph: Union of Concerned Scientists

Examples of Carbon Trading

The European Union Emission Trading Scheme (or EU ETS) is the largest multi-national, greenhouse gas emissions trading scheme in the world. It is one of the EU's central policy instruments to meet their cap set in the Kyoto Protocol (Jones et al., 2007, p. 64)

Additionally carbon Trading depends on -

- Carbon market
- Business to business
- Regional trade
- Country to country

Green Technology

The term "technology" refers to the application of knowledge for practical purposes.

The field of "green technology" encompasses a continuously evolving group of methods and materials, from techniques for generating energy to non-toxic cleaning products.

Goals

- Sustainability
- "Cradle to cradle" design
- Source reduction
- Innovation
- Viability

Green technology subject areas

- ✓ **Energy** - development of alternative fuels, new means
 - of generating energy and energy efficiency.
- ✓ **Green Building** - refers to a structure and using process
 - that is environmentally responsible and resource-efficient
 - throughout a building's life-cycle: from sitting to design,
 - construction, operation, maintenance, renovation, and demolition.
- ✓ **Environmentally preferred purchasing** - products whose contents
 - and methods of production have the smallest possible impact on
 - the environment
- ✓ **Green chemistry** - The invention, design and application of chemical
 - products and processes to reduce or to eliminate the use and
 - generation of hazardous substances.
- ✓ **Green nanotechnology** - application of green chemistry and
 - green engineering principles to this field.